



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

January 29, 2020

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 201806550 regarding Police Officer Andrei Nijnic, Tax No. 961005 (DADS No. 2019-21453)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances of this case, including Body Worn Camera footage, and has determined that Police Officer Nijnic will receive no disciplinary action for his actions in this matter. Police Officer Nijnic admitted to utilizing his Taser in order to intimidate an individual who was resisting arrest into complying with other officers who were trying to handcuff him. While Officer Nijnic did draw his Taser and point it toward the individual's face, he did not discharge the Taser, and in fact, he indicated that he did not have the intention to do so. This use of the Taser, to intimidate and coerce an individual into compliance with arresting officers is neither unreasonable nor prohibited. This tactic worked as intended, as the individual was able to be handcuffed almost immediately after Officer Nijnic pointed his Taser toward the individual. As this reasonable use of the Taser successfully assisted in diffusing an otherwise tense situation, no disciplinary action is warranted.

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,

Cecil Wade
Deputy Chief
Commanding Officer
Police Commissioner's Office

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